

Ineligible Applicants and Participant Terminations

Policy: When applicants applying for the program are found ineligible for WIC they must receive the *Notice of Ineligibility* printout from Compass unless the screening is done over the phone.

When a participant is determined not to be eligible for WIC during their certification period, they must receive 15 days of food benefits and the *Notice of Termination* printout from Compass regardless if eligibility determination was done in person or over the phone. If benefits expire less than 15 days in the future, staff must issue the next month of benefits to ensure a 15-day notification period. If the benefits expire in more than 15 days in the future (redeemed or not), food benefits for the current month should be issued.

- 1) The following are exceptions to giving 15 day's worth of benefits:
 - When **90 days (three months)** or less remains in the certification period, the remainder of the food benefits may be issued through the current certification period.
 - If the participant is terminated for one of the reasons below, the participant receives no additional food benefits.
 - No recent food benefit pick up (not available for staff selection).
 - Deceased.
 - Dual Participation with WIC.
 - Program Misuse for reason of intentionally misrepresenting circumstances to obtain benefits, and not eligible for the program.
 - No longer in family.
 - No BF 6 months postpartum.

Regulation: 7 CFR 246.7(h), 7 CFR 246.7(i)

Procedure/Additional Guidance:

WIC Applicants

- **Over the Phone:** If an applicant is screened over the phone for WIC eligibility and they are determined not to be eligible, explain eligibility to the applicant however a *Notice of Ineligibility* is not required.
- **Certification:** If an applicant is determined income ineligible on the Income Determination panel during the Certification visit, staff must check the Action box to move the applicant from a Pending status to an Ineligible status. An applicant found over income at the certification visit may not receive WIC benefits.
 - Print the *Notice of Ineligibility* and give it to the applicant (in-person or by mail).

WIC Participant Termination Reasons

Participants may be terminated during their certification for the following staff assigned termination reasons:

- Terminate Postpartum/BF - Recert as Pregnant.
- Terminate Postpartum/BF - Recert as Postpartum/BF.
- Terminate Postpartum/non-BF - Recert as BF.
- Terminate Pregnant - Recert as non-BF/BF.
- Terminate Pregnant - Recert as Pregnant.
- Recertify Active VOC.
- Not BF 6 months postpartum.
- Program misuse.
- Remove from waiting list.
- Not serving priority.
- Voluntary Withdraw.
- Autoterm.
- Moved Out of State.
- No Longer in Family.
- Over Income.

WIC Participant Terminations and the Notice of Termination

When a participant is found over income at:

- **Recertification:** A participant found over income at a recertification visit may receive benefits through the previous certification period.
- **Mid-Certification:** A participant found over income at a mid-certification visit should be provided with enough food benefits to ensure the participant receives the 15-day notice of ineligibility, unless there are **90 days (3 months)** or less until the end of the certification period, then the remainder of food benefits can be issued.
 - If an Active participant is determined income ineligible on the Income Determination panel, staff must issue any required food benefits (depending on where they are in the certification period) first, then return to the Income panel and click the “Check Income Eligibility” button. Then, staff must check the Action box.

Note: If one member of a family or economic unit is found to be income ineligible for WIC during a certification/recertification then the entire family is income ineligible.

A *Notice of Termination* form can be found under Printouts menu in Compass and must be given to the participant (either in person or mailed).

Client Voluntary Withdrawal Due to Reported Ineligibility

In some cases, participants may notify WIC that they believe they are no longer income-eligible or adjunctively eligible. Staff should use the following guidance:

- Inform the participant in writing 15 days before being suspended or disqualified and provide them WIC income guidelines and advise them to submit proof of income for re-determination if they wish to continue participation. Such notification shall include the reasons for this action, and the participants right to a fair hearing.
- It is the participant’s responsibility to provide proofs if they are interested in remaining on the program.
- If no proofs are submitted, staff must terminate the participant under the reason “**Voluntary Withdrawal.**” Per policy, staff must issue any required benefits and provide the **Notice of Termination**.
- If the participant later submits proof of income showing eligibility, staff may reinstate the participant as long as it is still within their certification period.

A *Notice of Program Termination* form does not need to be issued for:

- Participants who have reached their Certification End Date (as this is noted on the Family Food Benefits List)
- Participants who are being recertified as a different category.
- Participants automatically terminated by Compass. These reasons include:
 - Failure to Provide Proof.
 - No Recent Food Benefit Pick-up (occurs when participant has not picked up > 1 month worth of benefits).
 - Failure to Reapply (after certification has expired).
 - BF 1 Year Postpartum.
 - Child’s 5th Birthday.
 - No BF 6 months postpartum.
- Deceased individuals.
- Individuals who are no longer part of a family and are not transferring to another WIC family.
- Participants moving out of state.

Reinstatement

A participant who has been terminated by Compass (for example, No food benefit pickup) may be reinstated if they have not reached their Certification End Date. However, when their Certification End Date has passed, the participant must be recertified in order to receive benefits.



Once the participant reaches their Certification End Date, Compass sets their WIC status to Terminated. To recertify, access the Application panel and create a new application. WIC status changes to Pending and staff may proceed with the recertification.

Categorical Ineligibility And Food Benefits

Applicants/Participants who do not meet the definition of pregnant, postpartum, or breastfeeding women, infants and children are categorically ineligible for the Program.

- A child receives WIC Program benefits through the last day of the month of their fifth birthday.
- A breastfeeding woman receives WIC Program benefits until:
 - The last day of the month her breastfed infant turns one year old.
 - 0-6 months postpartum: She stops breastfeeding and is within 6 months after delivery shall be reclassified as a postpartum woman and receive postpartum food benefits from that date until the end of her certification period (not to exceed 6 months postpartum).
 - 6-12 months postpartum: A woman who stops breastfeeding more than 6 months after delivery is eligible to receive 15 days of food benefits starting the day she reports she is no longer breastfeeding.
- A non-breastfeeding postpartum woman receives WIC Program benefits for 6 months postpartum (after delivery).